



## **DECISION**

|                                             |   |                                                                                                                       |
|---------------------------------------------|---|-----------------------------------------------------------------------------------------------------------------------|
| Complaint No.                               | : | POS/57/2025/R.Thar/2025.                                                                                              |
| Name and address of the complainant         | : | Mr. Veenjhray s/o Pato Mal<br>r/o Village Posarko Paro near Bypass Mithi<br>District Tharparkar                       |
| Name of the Agency Complained against       | : | District Accounts Officer &<br>Small Dams Department                                                                  |
| Name & Designation of Investigating Officer | : | Mr. Muhammad Umar Panhwar,<br>Regional Director Tharparkar @Mithi.                                                    |
| Vetted by                                   | : | Dr. Khalil-ur-Rahman Shaikh, Advisor - I                                                                              |
| Subject                                     | : | <u>COMPLAINT AGAINST DISTRICT ACCOUNTS OFFICER AND EXECUTIVE ENGINEER SMALL DAMS DEPARTMENT, THARPARKAR AT MITHI.</u> |

### **THE COMPLAINT**

Mr. Veenjhray s/o Pato Mal, r/o Village Posarko Paro near Bypass Mithi, District Tharparkar at Mithi submitted complaint dated 24.03.2025 regarding alleged corruption in Sindh Small Dams Department, District Tharparkar and requested to obtain record from District Accounts Officer for year 2020 for conducting investigation.

### **PROCEEDINGS**

2. The complaint was admitted under Section 10 of the Establishment of Office of the Ombudsman for the Province of Sindh Act, 1991, subject to submission of a copy of CNIC and Affidavit on Form 'A'.

3. The District Accounts Officer and the Executive Engineer, Small Dams Department Tharparkar at Mithi were called upon vide letter dated 26.03.2025 to submit the report. In response, the District Accounts Officer submitted report dated 15.04.2025 and stated that in accordance with the directives issued by the Office of the Accountant General Sindh vide letter No. AG/W&S//Prox/Dist/2008/99 dated 27.06.2009 and letter No. AGS/TM/DAO/2014-15/210 dated 02.02.2015, the Public Works Department (PWD) functions as a self-accounting entity. Hence, the responsibility for pre-audit and record-keeping of PWD bills does not fall within the purview of District Accounts Officer. As per these directives, the Divisional Accounts Officer (DAO) is solely responsible for the pre-audit of PWD claims. The role of District Accounts Officer is limited to the issuance of system-generated cheques, subject to the availability of budget on the SAP system. Furthermore, as per instructions of A.G Sindh the record of PWD deposits are returned to the concerned Divisions after issuance of cheques.

4. The Executive Engineer, Small Dam Department was issued reminder dated 16.04.2025. In response, he submitted report dated 08.05.2025 stating that the complainant had neither pointed out deficiency of particular work where corruption was committed nor has mentioned any name of Contractor who was benefited. The complainant just blamed for corruption is looking baseless and malafide. He requested to file the complaint having no evidence.

5. In the meanwhile, the complainant submitted application dated 15.05.2025 producing details of disbursement of funds to the contractors by Small Dams Department for years 2022, 2023 and 2024 and requested to check work done on sites, order for inquiry and taking legal action.

6. The Executive Engineer was called upon vide letter dated 26.05.2025 to submit project documents (PC-I, Estimates, Tenders and Bills etc) relating Moor Dam, Bantari Dam, Khirpora Dam and Kambo Wah. In response, he stated vide report dated 02.06.2025 that enquiry against the said Dams i.e. Moor Dam, Bantari Dam, Khirpora Dam and Kambo Wah has been already initiated by the FIA Mirpurkhas and all records i.e. PC-I, Estimates, Tenders, Bills and other relevant record has been handed over to FIA Mirpurkhas.

**DECISION**

7. In view of the above facts and circumstances, the case is disposed of as closed as the matter is already under investigation by the Federal Investigation Agency.

Given under my hand and seal of Office



***Sd/-***

**(Muhammad Sohail Rajput)**

Sitara-e-Imtiaz-PAS

Ombudsman Sindh

Karachi dated 18<sup>th</sup> March, 2026.